

1 ENGROSSED SENATE
2 BILL NO. 1147

By: Hall, Haste, and Pederson
of the Senate

3 and

4 Caldwell (Trey), Kane,
5 Bashore, Blancett, Fugate,
and Hefner of the House

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7
8 An Act relating to the Oklahoma Firefighters Pension
and Retirement System; amending 11 O.S. 2021,
9 Sections 49-101 and 49-101.2, as amended by Sections
3 and 4, Chapter 232, O.S.L. 2022 (11 O.S. Supp.
10 2025, Sections 49-101 and 49-101.2), which relate to
volunteer firefighter pensions; modifying pension
11 amount; modifying compensation determination;
authorizing benefit increase for certain retired
12 members of the Oklahoma Firefighters Pension and
Retirement System; amending 62 O.S. 2021, Section
13 3103, as last amended by Section 2, Chapter 361,
O.S.L. 2024 (62 O.S. Supp. 2025, Section 3103), which
14 relates to the Oklahoma Pension Legislation Actuarial
Analysis Act; modifying certain definition; updating
15 statutory language; providing for codification; and
providing effective dates.
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18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. AMENDATORY 11 O.S. 2021, Section 49-101, as
20 amended by Section 3, Chapter 232, O.S.L. 2022 (11 O.S. Supp. 2025,
21 Section 49-101), is amended to read as follows:

22 Section 49-101. A. All retired volunteer firefighters who
23 qualify for retirement shall be entitled to a monthly pension. The
24 monthly pension of a volunteer firefighter who retires prior to the

1 effective date of this section shall be in the amount retired
2 volunteer firefighters are receiving at the time the volunteer
3 firefighter begins to receive a pension for each year of credited
4 service not to exceed thirty (30) years. Volunteer firefighters who
5 retire on and after the effective date of this section shall receive
6 a monthly pension in the amount of Ten Dollars (\$10.00) for each
7 year of credited service not to exceed thirty (30) years. In
8 determining the number of years of credited service, a fractional
9 year of six (6) months or more shall be counted as one (1) full year
10 and a fractional year of less than six (6) months shall not be
11 counted in such determination. Retired volunteer firefighters of a
12 municipality shall receive a pension ~~of~~ not less than that which
13 retired volunteer firefighters of such municipality were receiving
14 on June 30, 1985.

15 B. A volunteer firefighter who terminates service after
16 completing ten (10) years of credited service, but less than twenty
17 (20) years of credited service, shall be entitled to receive a
18 vested benefit commencing on the date the firefighter reaches fifty
19 (50) years of age or the date the firefighter would have had twenty
20 (20) years of credited service had the firefighter's service
21 continued uninterrupted, whichever is later. The monthly amount of
22 such retirement benefit shall be the amount being paid to volunteer
23 firefighters at the time the member vests multiplied by the number
24 of years of credited service. Credited service must be established

1 at the time of the volunteer firefighter's termination. If a
2 volunteer firefighter who terminated employment and elected, or was
3 eligible to elect, a vested benefit dies prior to being eligible to
4 receive benefits, the volunteer firefighter's beneficiary, as
5 defined in paragraph 16 of Section 49-100.1 of this title, shall be
6 entitled to the volunteer firefighter's normal monthly retirement
7 benefit on the date the deceased volunteer firefighter would have
8 been eligible to receive the benefit.

9 SECTION 2. AMENDATORY 11 O.S. 2021, Section 49-101.2, as
10 amended by Section 4, Chapter 232, O.S.L. 2022 (11 O.S. Supp. 2025,
11 Section 49-101.2), is amended to read as follows:

12 Section 49-101.2. Any member serving as an active volunteer
13 firefighter who receives annual compensation from the fire
14 department the firefighter is enrolled in as a member of the
15 Oklahoma Firefighters Pension and Retirement System for services
16 related to firefighting, other than reimbursement of expenses in
17 excess of ~~five and one-half (5 1/2) times the annual pension benefit~~
18 ~~paid by the System to a retired volunteer firefighter with twenty~~
19 ~~(20) years credited service~~ Nine Thousand Nine Hundred Thirty-nine
20 Dollars and sixty-nine cents (\$9,939.69), shall be considered a paid
21 firefighter and must meet the physical and agility requirements
22 pursuant to Section 49-116 of this title to continue as an active
23 member of the System. Credited service earned as a paid firefighter
24 pursuant to this section shall not be considered actual experience

1 as a paid firefighter for purposes of meeting the qualifications of
2 a paid fire chief as provided in Section 29-102 of this title. No
3 fire department of a participating municipality shall employ a
4 volunteer firefighter from another fire department to perform
5 services relating to firefighting for any compensation of any kind.

6 SECTION 3. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 49-143.8 of Title 11, unless
8 there is created a duplication in numbering, reads as follows:

9 A. Except as provided in subsection B of this section, any
10 person receiving benefits from the Oklahoma Firefighters Pension and
11 Retirement System as of June 30, 2026, who continues to receive
12 benefits on or after the effective date of this section, shall
13 receive an increase in benefits as follows:

14 1. Zero percent (0%) if the person has been retired for less
15 than ten (10) years as of June 30, 2026;

16 2. Three percent (3%) if the person has been retired for at
17 least ten (10) years but less than twenty (20) years as of June 30,
18 2026; and

19 3. Six percent (6%) if the person has been retired for twenty
20 (20) years or more as of June 30, 2026.

21 B. Any increase in benefits a person is eligible to receive
22 pursuant to repealed Section 49-136 of Title 11 of the Oklahoma
23 Statutes after June 30, 2020, shall be used to offset the increase
24 in benefits provided in subsection A of this section.

1 SECTION 4. AMENDATORY 62 O.S. 2021, Section 3103, as
2 last amended by Section 2, Chapter 361, O.S.L. 2024 (62 O.S. Supp.
3 2025, Section 3103), is amended to read as follows:

4 Section 3103. As used in the Oklahoma Pension Legislation
5 Actuarial Analysis Act:

6 1. "Amendment" means any amendment, including a substitute
7 bill, made to a retirement bill by any committee of the House of
8 Representatives or Senate, any conference committee of the House or
9 Senate or by the House or Senate;

10 2. "RB number" means that number preceded by the letters "RB"
11 assigned to a retirement bill by the respective staffs of the
12 ~~Oklahoma State~~ Senate and the ~~Oklahoma~~ House of Representatives when
13 the respective staff office prepares a retirement bill for a member
14 of the Legislature;

15 3. "Legislative Actuary" means the firm or entity that enters
16 into a contract with the Legislative Service Bureau pursuant to
17 Section 452.15 of Title 74 of the Oklahoma Statutes to provide the
18 actuarial services and other duties provided for in the Oklahoma
19 Pension Legislation Actuarial Analysis Act;

20 4. "Nonfiscal amendment" means an amendment to a retirement
21 bill having a fiscal impact, which amendment does not change any
22 factor of an actuarial investigation specified in subsection A of
23 Section 3109 of this title;

24 5. "Nonfiscal retirement bill" means a retirement bill:

- 1 a. which does not affect the cost or funding factors of a
- 2 retirement system,
- 3 b. which affects such factors only in a manner which does
- 4 not:
- 5 (1) grant a benefit increase under the retirement
- 6 system affected by the bill,
- 7 (2) create an actuarial accrued liability for or
- 8 increase the actuarial accrued liability of the
- 9 retirement system affected by the bill, or
- 10 (3) increase the normal cost of the retirement system
- 11 affected by the bill,
- 12 c. which authorizes the purchase by an active member of
- 13 the retirement system, at the actuarial cost for the
- 14 purchase as computed pursuant to the statute in effect
- 15 on the effective date of the measure allowing such
- 16 purchase, of years of service for purposes of reaching
- 17 a normal retirement date in the applicable retirement
- 18 system, but which cannot be used in order to compute
- 19 the number of years of service for purposes of
- 20 computing the retirement benefit for the member,
- 21 d. which provides for the computation of a service-
- 22 connected disability retirement benefit for members of
- 23 the Oklahoma Law Enforcement Retirement System
- 24 pursuant to Section 2-305 of Title 47 of the Oklahoma

- 1 Statutes if the members were unable to complete twenty
2 (20) years of service as a result of the disability,
3 e. which requires membership in the defined benefit plan
4 authorized by Section 901 et seq. of Title 74 of the
5 Oklahoma Statutes for persons whose first elected or
6 appointed service occurs on or after November 1, 2018,
7 if such persons had any prior service in the Oklahoma
8 Public Employees Retirement System prior to November
9 1, 2015,
10 f. which provides for a one-time increase in retirement
11 benefits if the increase in retirement benefits is not
12 a permanent increase in the gross annual retirement
13 benefit payable to a member or beneficiary, occurs
14 only once pursuant to a single statutory authorization
15 and does not exceed:
16 (1) the lesser of two percent (2%) of the gross
17 annual retirement benefit of the member or One
18 Thousand Dollars (\$1,000.00) and requires that
19 the benefit may only be provided if the funded
20 ratio of the affected retirement system would not
21 be less than sixty percent (60%) but not greater
22 than eighty percent (80%) after the benefit
23 increase is paid,
24

- 1 (2) the lesser of two percent (2%) of the gross
2 annual retirement benefit of the member or One
3 Thousand Two Hundred Dollars (\$1,200.00) and
4 requires that the benefit may only be provided if
5 the funded ratio of the affected retirement
6 system would be greater than eighty percent (80%)
7 but not greater than one hundred percent (100%)
8 after the benefit increase is paid,
- 9 (3) the lesser of two percent (2%) of the gross
10 annual retirement benefit of the member or One
11 Thousand Four Hundred Dollars (\$1,400.00) and
12 requires that the benefit may only be provided if
13 the funded ratio of the affected retirement
14 system would be greater than one hundred percent
15 (100%) after the benefit increase is paid, or
- 16 (4) the greater of two percent (2%) of the gross
17 annual retirement benefit of the volunteer
18 firefighter or One Hundred Dollars (\$100.00) for
19 persons who retired from the Oklahoma
20 Firefighters Pension and Retirement System as
21 volunteer firefighters and who did not retire
22 from the Oklahoma Firefighters Pension and
23 Retirement System as a paid firefighter.
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1 As used in this subparagraph, "funded ratio" means the
2 figure derived by dividing the actuarial value of
3 assets of the applicable retirement system by the
4 actuarial accrued liability of the applicable
5 retirement system,

6 g. which modifies the disability pension standard for
7 police officers who are members of the Oklahoma Police
8 Pension and Retirement System as provided by Section
9 50-115 of Title 11 of the Oklahoma Statutes,

10 h. which provides a cost-of-living benefit increase
11 pursuant to the provisions of:

12 (1) Section 49-143.7 of Title 11 of the Oklahoma
13 Statutes,

14 (2) Section 3 of this act,

15 (3) Section 50-136.9 of Title 11 of the Oklahoma
16 Statutes,

17 ~~(3)~~ (4) Section 1104K of Title 20 of the Oklahoma
18 Statutes,

19 ~~(4)~~ (5) Section 2-305.12 of Title 47 of the Oklahoma
20 Statutes,

21 ~~(5)~~ (6) Section 17-116.22 of Title 70 of the Oklahoma
22 Statutes,

23 ~~(6)~~ (7) Section 930.11 of Title 74 of the Oklahoma
24 Statutes,

- 1 i. which modifies the computation of the line-of-duty
2 disability benefit pursuant to the provisions of this
3 section and Sections 50-101 and 50-115 of Title 11 of
4 the Oklahoma Statutes, ~~or~~
- 5 j. which authorizes membership in the Oklahoma Law
6 Enforcement Retirement System for active commissioned
7 or CLEET-certified agents of the Office of the
8 Attorney General or the Military Department of the
9 State of Oklahoma pursuant to Sections 3 and 4 of this
10 act, or
- 11 k. which provides for a benefits increase for volunteer
12 firefighters pursuant to Sections 49-101 and 49-101.2
13 of Title 11 of the Oklahoma Statutes.

14 A nonfiscal retirement bill shall include any retirement bill that
15 has as its sole purpose the appropriation or distribution or
16 redistribution of monies in some manner to a retirement system for
17 purposes of reducing the unfunded liability of such system or the
18 earmarking of a portion of the revenue from a tax to a retirement
19 system or increasing the percentage of the revenue earmarked from a
20 tax to a retirement system;

21 6. "Reduction-in-cost amendment" means an amendment to a
22 retirement bill having a fiscal impact which reduces the cost of the
23 bill as such cost is determined by the actuarial investigation for
24 the bill prepared pursuant to Section 3109 of this title;

1 7. "Retirement bill" means any bill or joint resolution
2 introduced or any bill or joint resolution amended by a member of
3 the Legislature which creates or amends any law directly affecting a
4 retirement system. A retirement bill shall not mean a bill or
5 resolution that impacts the revenue of any state tax in which a
6 portion of the revenue generated from such tax is earmarked for the
7 benefit of a retirement system;

8 8. "Retirement bill having a fiscal impact" means any
9 retirement bill creating or establishing a retirement system and any
10 other retirement bill other than a nonfiscal retirement bill; and

11 9. "Retirement system" means the Teachers' Retirement System of
12 Oklahoma, the Oklahoma Public Employees Retirement System, the
13 Uniform Retirement System for Justices and Judges, the Oklahoma
14 Firefighters Pension and Retirement System, the Oklahoma Police
15 Pension and Retirement System, the Oklahoma Law Enforcement
16 Retirement System, or a retirement system established after January
17 1, 2006.

18 SECTION 5. Section 4 of this act shall become effective October
19 1, 2026.

20 SECTION 6. Sections 1, 2, and 3 of this act shall become
21 effective November 1, 2026.
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1 Passed the Senate the 14th day of April, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives